

State of California

CIVIL CODE

Section 3110

3110. For purposes of this title, the following definitions shall apply:

(a) “Artificial intelligence” means an engineered or machine-based system that varies in its level of autonomy and that can, for explicit or implicit objectives, infer from the input it receives how to generate outputs that can influence physical or virtual environments.

(b) “Developer” means a person, partnership, state or local government agency, or corporation that designs, codes, produces, or substantially modifies an artificial intelligence system or service for use by members of the public. For purposes of this subdivision, “members of the public” does not include an affiliate as defined in subparagraph (A) of paragraph (1) of subdivision (c) of Section 1799.1a, or a hospital’s medical staff member.

(c) “Generative artificial intelligence” means artificial intelligence that can generate derived synthetic content, such as text, images, video, and audio, that emulates the structure and characteristics of the artificial intelligence’s training data.

(d) “Substantially modifies” or “substantial modification” means a new version, new release, or other update to a generative artificial intelligence system or service that materially changes its functionality or performance, including the results of retraining or fine tuning.

(e) “Synthetic data generation” means a process in which seed data are used to create artificial data that have some of the statistical characteristics of the seed data.

(f) “Train a generative artificial intelligence system or service” includes testing, validating, or fine tuning by the developer of the artificial intelligence system or service.

(Added by Stats. 2024, Ch. 817, Sec. 1. (AB 2013) Effective January 1, 2025.)